

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF MARIN**

DATE: 09/18/26 TIME: 1:30 P.M. DEPT: L CASE NO: CV0003098

PRESIDING: HON. MARK A. TALAMANTES

REPORTER:

CLERK: M. GIL

PLAINTIFF: BARCLAYS BANK
DELAWARE

vs.

DEFENDANT: DAVID MORALES

NATURE OF PROCEEDINGS: MOTION – AMEND

RULING

Plaintiff filed a Motion to correct a clerical mistake made by the bank in which the Plaintiff failed to add an additional service charge of \$71.02, to the total judgment. The judgment was entered almost 2 years ago on or about December 13, 2024.

Plaintiff's motion to correct the judgment to add a \$71.02 service charge is DENIED.

Parties must comply with Marin County Superior Court Local Rule 2.10(A)–(B). A party seeking oral argument must notify the Court at (415) 444-7046 and all opposing parties by 4:00 p.m. on the court day before the hearing. Notice may be provided by telephone or in person; direct contact with counsel or the parties is not required. Absent timely notice to the Court and all parties, no oral argument will be permitted except by order. If no party properly requests oral argument, the tentative ruling becomes the order of the Court..

***IT IS ORDERED* Evidentiary hearings are in person in Department L. Routine appearances may be made by video using the link on the Court's website. When your case is called, turn on your camera and ensure the appearing party or lawyer is properly identified on screen.**

***FURTHER ORDERED* Parties are responsible for maintaining a reliable connection and being available throughout the remote hearing. If a party's connection is inadequate, the Court may proceed in that party's absence. Participants determined to be driving during the hearing will be removed from the virtual courtroom. (Yes, this happens).**

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF MARIN**

DATE: 09/18/26 TIME: 1:30 P.M. DEPT: L CASE NO: CV0003730

PRESIDING: HON. MARK A. TALAMANTES

REPORTER:

CLERK: M. GIL

PLAINTIFF: NANCY DREW, ET AL

vs.

DEFENDANT: MARY CROWLEY

NATURE OF PROCEEDINGS: MOTION – CONSOLIDATE

RULING

Plaintiff Nancy Drew’s (“Plaintiff” or “Ms. Drew”) motion to consolidate is GRANTED. (Code Civ. Proc., § 1048.)

I. BACKGROUND

This is an elder abuse action. Plaintiff originally filed this case through her guardian ad litem, her brother, Robert Drew. (Complaint, ¶ 2.) Defendant Mary Crowley (“Defendant”) is a former neighbor and acquaintance of Nancy Drew. (*Id.* at ¶ 3.)

The complaint alleges that Plaintiff executed a trust in 1999 and a will in 2014. (Complaint, ¶¶ 10-11.) The will gave the entirety of her estate to the trust and named her brother, Robert, the executor of her estate. (*Id.* at ¶ 13.) Plaintiff subsequently named her brother the successor trustee of the trust. (*Id.* at ¶ 17.) These documents allegedly did not mention Defendant. (*Id.* at ¶ 18.)

At the time this action commenced in 2024, Plaintiff was 85 years old and had allegedly been suffering from cognitive impairment resulting from Alzheimer’s disease for a few years. (Complaint, ¶¶ 9, 20.) The complaint asserts that Plaintiff had lacked the mental capacity to make decisions on her own behalf since approximately early April 2023. (*Id.* at ¶ 21.)

Plaintiff alleges that beginning around that time, Defendant began to exercise undue influence over Plaintiff to induce her to make Defendant a beneficiary of her estate. According to the complaint, Defendant isolated Plaintiff from her friends, family, and attorney; demanded that she not communicate with Robert Drew. The complaint alleges that Plaintiff fired the attorney who had drawn up her initial estate plans, and that she retain an attorney of Defendant’s choosing; and caused her to change her longstanding estate plan to make Defendant a beneficiary. (Complaint, ¶ 23.)